

PUBLIC RECORD — DAY 5

THE PERJURY ON THE FACE OF THE SWORN RECORD

Sworn \$0 on 19 February 2024. Signed at \$565,000 thirty-four days earlier.

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19 May 2026

Day 1 was published on 20 April 2026. Day 2 on 1 May 2026. Day 3 on 4 May 2026. Day 4 on 11 May 2026.

All are available in the public archive.

Public archive: <https://github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive>

TRACK ONE — THE PERJURY ON THE FACE OF THE RECORD

On 16 January 2024 — thirty-four days before the final hearing in BV20D01752 — the Respondent signed a Proxy Statement and Prospectus filed with the United States Securities and Exchange Commission. That document, on page 30, states on its face that the Respondent's 50,000 Founder Shares in Oxus Acquisition Corp had a market value of approximately \$565,000.

On 7 February 2024, twelve days before the hearing, the Business Combination closed and the performance condition triggering recognition of those shares was met.

On 8 February 2024, eleven days before the hearing, the new company (Borealis Foods, ticker BRLS) began trading on the Nasdaq exchange in New York. The Respondent was photographed at the listing.

On 19 February 2024 the Respondent swore his Form ES2. He stated, on oath, that those same 50,000 shares were worth \$0. He repeated that figure under cross-examination on 22 February 2024. His counsel repeated it on instructions on 19, 26 and 28 February 2024.

A \$565,000 asset was declared as \$0 in sworn evidence before the High Court. No court has ever determined whether that sworn statement was true or false. This statement asks why.

Who I am

I am Nadia Zahmoul. I am autistic (NHS diagnosis, Central London Adult Autism Service, June 2025) and have Post-Traumatic Stress Disorder, chronic since 2013, treated continuously by Professor Gerald Libby FRCP FRCPsych. I am a litigant in person across six live High Court proceedings, operating without representation, without participation measures, and without income, against an accumulating liability of more than one million pounds anchored in the financial settlement these proceedings produced.

What was sworn

The Respondent's sworn Form ES2 of 19 February 2024 records his Oxus shareholding in these terms:

"Oxus Acquisition Corp — 50,000 shares — £0 — Non Matrimonial asset as subject to work and received on 6/2/2022."

On 22 February 2024 the Respondent gave oral evidence on oath. He stated that those shares were worth \$0. He stated that he had resigned his directorship. He made no reference to the Business Combination, to the Closing Date, to the Nasdaq listing, or to the photograph taken eleven days earlier.

Counsel for the Respondent repeated the same \$0 figure, on his instructions, in opening submissions on 19 February 2024, in oral submissions on 26 February 2024, and in closing submissions on 28 February 2024. Each repetition is recorded in the contemporaneous attendance notes of the final hearing.

What the public documentary record showed at the same time

The Oxus Acquisition Corp Proxy Statement and Prospectus (CIK 1852973, Registration No. 333-273967, filed at SEC EDGAR) is a public document. The Respondent signed it on 16 January 2024 in his capacity as independent director and Audit Committee member. The Proxy Statement records, at page 30, the following:

"The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value

of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024.”

\$1,695,000 divided across three independent directors yields approximately \$565,000 per director. The Proxy Statement also records, at page 340, the accounting treatment of those shares:

“The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance.”

The Business Combination was consummated on 7 February 2024. The performance condition was met. The shares vested for accounting purposes.

On 8 February 2024 trading in the new company began. The Respondent attended the Nasdaq listing in New York. A photograph of him at the exchange is in the public domain and is exhibited to the United States Securities and Exchange Commission whistleblower submission TCR 17284-760-060-567 (filed 9 October 2024, under penalty of perjury).

The same SEC Proxy Statement records, at pages 245–246, that Oxus was at the relevant time chaired by Kenes Rakishev as Non-Executive Chairman and Director, with Oxus Capital Pte. Ltd as Sponsor holding 4,162,500 shares (63.53% of pre-transaction beneficial ownership). The same filing records, at page 287 and at footnote (2) to the beneficial ownership table, that Mr Rakishev is the controlling shareholder of Oxus Capital Pte. Ltd, and therefore the controlling shareholder of Oxus. The 50,000 Founder Shares were transferred to the Respondent by the Sponsor on 7 June 2022 (Proxy Statement, page 340).

Every fact in this section can be verified, in sixty seconds, against the SEC EDGAR public filings database under CIK 1852973.

The legal definition of perjury

The Perjury Act 1911, section 1, provides:

“If any person lawfully sworn as a witness or as an interpreter in a judicial proceeding wilfully makes a statement material in that proceeding, which he knows to be false or does not believe to be true, he shall be guilty of perjury.”

Four elements. Each is met on the face of the documentary record set out above.

First — lawfully sworn in a judicial proceeding. The Respondent was sworn as a witness in BV20D01752, a financial remedy hearing before Mr Justice MacDonald in the Family Division of the High Court. His Form ES2 of 19 February 2024 is a sworn statement. His oral evidence of 22 February 2024 was given under the oath administered to him in court. Both elements of section 1 are engaged on the trial record.

Second — a statement material in that proceeding. The proceeding was a financial remedy hearing. The composition and value of the asset schedule was the central issue in dispute. A \$565,000 asset declared as \$0 is, on any view, material to a hearing whose purpose is to determine the assets available for distribution. The materiality of a statement under the Perjury Act 1911 is whether the false statement bore on a question in issue in the proceeding; it is not whether the statement determined the ultimate outcome. A \$565,000 declaration as \$0 in the asset schedule of a financial remedy hearing meets that threshold by any measure.

Third — wilfully made. Thirty-four days before the hearing, the Respondent signed a public SEC filing stating the same shares had a market value of approximately \$565,000. Eleven days before the hearing, he attended the Nasdaq listing in person and was photographed there. The sworn ES2 figure and the three counsel-instructed repetitions of the \$0 figure (in opening on 19 February, oral submissions on 26 February, and closing on 28 February 2024) were not isolated. They were sustained across four trial days. Wilfulness, in the sense required by section 1, is not at issue.

Fourth — knew to be false, or did not believe to be true. The Respondent was not a passive investor in an arms-length entity. He was an independent director of a Nasdaq-listed company controlled by a named non-executive chairman with a 63.5% interest. He sat on the Oxus Audit Committee, the Compensation Committee, and the Nominating Committee. The Audit Committee's duties — as set out in the same Proxy Statement at page 248 — include "reviewing and discussing with management and the independent auditor the annual audited financial statements". He signed the SEC Registration Statement on Form S-4 twice in six days as Director — Amendment No. 4 on 5 January 2024 and Amendment No. 5 on 11 January 2024 (Registration No. 333-273967) — both signature pages are on the public regulatory record at SEC EDGAR and are appended to the SEC Filings Excerpts accompanying this statement. He signed the Definitive Proxy Statement and Prospectus on 16 January 2024 — the document that records his 50,000 Founder Shares at approximately \$565,000. On 2 February 2024, seventeen days before he swore \$0, the Oxus extraordinary general meeting of shareholders approved the Business Combination Proposal — the SEC Form 8-K reporting that approval is also appended to the SEC Filings

Excerpts. He attended the Nasdaq listing in person on 8 February 2024. Further, on 29 February, 4 March and 6 March 2024, the Applicant's solicitors sent three written requests for explanation regarding the Oxus shares. The Respondent directed his solicitors to ignore all three. That direction is documented in contemporaneous correspondence. The Perjury Act 1911 does not require a confession. It requires the false statement to have been made with knowledge of falsity. The documentary record on the face of the SEC filings establishes that knowledge.

All four elements are met on the face of the public documentary record. Whether a court will so find is a question for a court. That a prima facie case under Perjury Act 1911 section 1 exists on the documents already in the public domain is not a contested question.

The misrepresentation pattern was on the record from July 2022, and before the trial judge before judgment

The misrepresentation that culminated in the sworn \$0 figure of 19 February 2024 did not begin at trial. The same pattern of concealment was on the record nineteen months earlier, in correspondence between the parties' solicitors, and was formally put before the trial judge by counsel for the Applicant at the Pre-Trial Review on 13 July 2022.

On 6 June 2022, the day after the Respondent was appointed to the Oxus board, his solicitors HFC wrote to the Applicant's solicitors Withers in these terms:

"My client has been offered a directorship role in a SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed. My client will not receive income from the role but he may receive shares in the company subject to its performance — full details are yet to be finalised but will be confirmed when they are."

That description was false on the date it was made. On 1 June 2022 the Respondent had already been appointed to the Oxus Board of Directors (SEC Form 8-K, filed 6 June 2022). On 3 June 2022 he had already executed a Power of Attorney (Exhibit 24.1 to the Form S-1 filing). On 7 June 2022 his ownership of 50,000 Class B Founder Shares was disclosed by the filing of SEC Form 3, the Initial Statement of Beneficial Ownership. Those Class B shares would automatically convert into Class A shares on the consummation of a Business Combination. The Class A shares were quoted on Nasdaq at \$10 each. The 50,000 shares were therefore — on the public documentary record on 6 June 2022 — already valued at approximately \$500,000.

Brent Molyneux KC, then leading counsel for the Applicant, identified the contradiction in the Position Statement filed at the Pre-Trial Review hearing on 13 July 2022. At paragraph 4 of that statement, counsel anticipated, with precision, the defence the Respondent would later use:

"His explanation for the misleading manner in which his involvement in Oxus was portrayed is awaited (look out for mention of illiquidity, uncertainty, tradability — and then remember that he said he may receive equity at a time when not only did he already have B shares, but he knew that its value on current figures, would be \$500,000)."

That sentence was written nineteen months before the trial. It predicts the defence (the shares were illiquid, uncertain, conditional) that the Respondent would later use at trial and that MacDonald J would later adopt at paragraph 48 of the 8 May 2025 judgment in different language ("those shares did not constitute matrimonial property"). The pattern of concealment was on the record, before the trial judge, before the trial.

On 6 March 2024 at 05:23, six days after the trial concluded and forty-three days before judgment was handed down, the Applicant wrote to the trial judge in person, through his clerk Anita Knight, with both counsel — Alexis Campbell KC for the Respondent, and Brent Molyneux KC formerly for the Applicant — on cc. The email set out the perjury allegation in plain terms: that the Respondent, on oath, had valued at \$0 shares the Business Combination of which had occurred twelve days before he gave that evidence. The email attached five documents: a Material Event summary; an extract of the SEC Filings; the full Oxus Acquisition Corp Definitive Proxy Statement and Prospectus of 16 January 2024; an Oxus timeline; and the Pre-Trial Review Position Statement of Brent Molyneux KC of 13 July 2022. The full email and all five attachments are published on the public archive.

Counsel for the Respondent, Alexis Campbell KC, wrote to the court on the same day, 6 March 2024, asking the judge not to read the Applicant's submission.

Forty-three days later, on 18 April 2024, MacDonald J handed down judgment ([2024] EWFC 79). Paragraph 5 dismisses the D11 application in a single sentence: "not proper to take into account". The judgment is otherwise silent on the Oxus perjury allegation. The judge had been put on actual notice, in writing, of every documentary fact set out in this statement, six weeks before he wrote that sentence. The notice included counsel's own Position Statement, filed by the Applicant's former counsel, predicting the precise defence the Respondent would later use. "Not proper to take into account" was not a decision made on incomplete information. It was a decision made

on materials that included a contemporaneous prediction of the pattern of deception.

Why the matrimonial-character ground is legally irrelevant to perjury

The Perjury Act 1911 section 1 makes it an offence for a witness lawfully sworn in a judicial proceeding wilfully to make a statement, material in that proceeding, which he knows to be false. Every element of the offence is satisfied or not satisfied at the moment the false statement is made on oath. The offence is complete at that moment. What the court later determines to do with the underlying asset has no bearing on whether the offence was committed.

Materiality, in the offence of perjury, is a term of art. It means that the false statement bore on a question in issue in the proceeding. It does not mean that the statement determined the outcome. It does not mean that the asset described in the statement was awarded to one party rather than the other. It does not mean that the asset was matrimonial property, or non-matrimonial property, or any other category of property. A witness who lies on oath about the value of an asset which the court later finds to be irrelevant to its decision still commits perjury, provided the statement, at the time it was made, bore on a question in issue. In a financial remedy hearing, the value of every asset in the asset schedule bears on a question in issue. That is the function of the asset schedule. A \$565,000 declaration of \$0 in that schedule is material whether the asset is ultimately included in the matrimonial pot or excluded from it. The materiality is fixed at the moment the false statement is made; it does not migrate with the court's later treatment of the asset.

The proposition that a witness can lie on oath about the value of an asset, and then be insulated from the offence of perjury by the post-hoc finding that the asset was not matrimonial, is not a known principle of English law. It is not in *L v L* [2006] EWHC 956 (Fam), which lists the grounds on which a financial remedy order can be set aside (fraud, mistake, material non-disclosure, *Barder*, executory). It is not in section 31F(6) of the Matrimonial and Family Proceedings Act 1984. It is not in rule 9.9A of the Family Procedure Rules 2010. It is not in the Perjury Act 1911 itself, which contains no exception for assets later determined to be non-matrimonial. If it were a principle of law, it would mean a witness could lie under oath about any asset, knowing that the matrimonial-character finding could later be made on the basis of the false figure, and be safe from prosecution either way. That cannot be, and is not, the law.

The judgment of 8 May 2025 at paragraph 48, in stating that “that asset was dealt with on the basis that those shares did not constitute matrimonial property”, does not engage the question whether the sworn statement of \$0 was true or false. The two questions are independent. The judgment answers the matrimonial-character question (or purports to). It does not answer the perjury question. The perjury question — was the sworn statement true or false — remains undetermined.

Material non-disclosure is itself criminal

Even if every one of the judicial reformulations of the perjury question set out in Track Two below were accepted at face value, the conduct does not stop being criminal. The duty of full and frank disclosure is the foundation of financial remedy proceedings: *Livesey (formerly Jenkins) v Jenkins* [1985] AC 424; *NG v SG* [2011] EWHC 3270; *Moher v Moher* [2019] EWCA Civ 1482. That duty is owed by the party giving disclosure, on oath, to the court. It is not optional. Its breach is not a procedural irregularity.

Where a duty to disclose is owed, dishonest non-disclosure to the court engages section 3 of the Fraud Act 2006 (fraud by failing to disclose information). Where a positive false representation is made, section 2 (fraud by false representation) is engaged. Both offences require neither matrimonial property nor any specific category of asset. Both require dishonesty and intent to make a gain or cause a loss. A \$565,000 asset declared as \$0 in sworn financial disclosure to a court adjudicating financial distribution is, on its face, both a false representation and a failure to disclose.

Whichever way the conduct is approached — perjury, fraud by false representation, fraud by failing to disclose — it is criminal. The matrimonial classification of the asset does not assist. The timing of the evidence does not assist. The procedural route by which the issue reached the court does not assist. The conduct itself, on the documentary record set out above, is what it is.

The court's own law was before it at trial

In *GW v RW* [2003] EWHC 611, Mostyn J held it was unacceptable for a zero figure to be inserted for an asset assuredly realisable at some future date. Counsel for the Applicant cited *GW v RW* in opening and closing submissions at the final hearing in February 2024. The court applied *GW v RW* in respect of the Coinbase account. It did not apply it to Oxus. The same legal test produced different results on the same trial record, in respect of the same Respondent, in respect of the same category of asset. No explanation has ever been given.

TRACK TWO — TWO YEARS OF NON- DETERMINATION

Six judicial responses. No determination.

Between March 2024 and March 2026, the question whether the sworn statement of \$0 on 22 February 2024 was true or false has been formally placed before five different judicial bodies. On each occasion, a different reason has been given for not engaging with it. The reasons are summarised below. None addresses the question.

Date	Court / decision	Stated basis for non-engagement	Why it does not answer perjury
18 April 2024	MacDonald J — [2024] EWFC 79 — para 5	D11 application “not proper to take into account”. One sentence. No reasons given.	Silence is not a determination. The D11 contained the SEC merger evidence. The court did not engage its content.
18 April 2024	MacDonald J — [2024] EWFC 79 — para 76	Oxus treated as non-matrimonial in a bracketed clause: the wife “does not appear to dispute” it.	Contradicted by the D11 the wife had filed seven weeks earlier specifically disputing it. The bracket rests on the suppression at para 5.
23 December 2024	Moylan LJ — Permission to Appeal refused	“The judge was entitled not to consider evidence sent to him after the hearing had concluded.”	Addresses a different question. The Business Combination closed twelve days before trial. The information was true at the trial. The D11 was the evidential record of a pre-existing public fact, not new evidence.
8 May 2025	MacDonald J — set-aside dismissed — para 48	“That asset was dealt with on the basis that those shares did not constitute matrimonial property.”	A new legal ground introduced thirteen months after the original judgment. The matrimonial character of an asset is irrelevant to whether the sworn statement of its value was true or false.

Date	Court / decision	Stated basis for non-engagement	Why it does not answer perjury
4 August 2025	King LJ — CPR 52.30 application refused	Treats Oxus as a factual finding question reviewable only on Volpi v Volpi grounds.	A perjury allegation is not a factual finding question. It is a question whether the sworn statement was true. Volpi v Volpi has no application to it.
11 March 2026	Collins Rice J — JR refused TWM in AC-2025-LON-004293	Order characterises the claim as concerning “criminal complaints” against the husband. The five JR grounds are not separately addressed.	The JR ground was that no judicial determination of the Oxus question has been identified. The order does not identify one. It refuses permission to seek one.

Six responses. Six different reasons. No determination of the question.

The 8 May 2025 judgment — what was pleaded, what was said

The 8 May 2025 hearing was a set-aside application under section 31F(6) of the Matrimonial and Family Proceedings Act 1984 and rule 9.9A of the Family Procedure Rules 2010, pursued by the Applicant following the observations of Moylan LJ in the Court of Appeal’s refusal of permission to appeal on 23 December 2024. The application pleaded six grounds. The third ground, at paragraph 14(c) of the approved judgment, is recorded by MacDonald J in these terms:

“The husband has committed perjuries regarding the Oxus shares.”

The application pleaded perjury on the Oxus shares as a distinct, specific ground of set-aside, supported by the documentary evidence on the SEC filings (which was annexed to the D11 of 7 March 2024 and to the contempt application of 18 October 2024). The legal framework cited by the judge himself at paragraphs 28–30 of the same judgment lists the grounds on which a financial remedy order may be set aside, drawing on *L v L* [2006] EWHC 956 (Fam) and on PD9A paragraph 13.5:

“The grounds on which a financial remedy order may be set aside are and will remain a matter for decisions by judges. The grounds include (i) fraud; (ii) material non-disclosure; (iii) certain limited types of mistake; (iv) a subsequent event, unforeseen

and unforeseeable at the time the order was made, which invalidates the basis on which the order was made.”

Perjury on the value of an asset in financial disclosure is both fraud and material non-disclosure. Both are listed grounds. The pleaded ground engaged the listed grounds directly. The court’s response to that pleaded ground is at paragraph 48 of the same judgment:

“The wife has likewise provided no further reliable evidence in relation to the allegation that the husband committed perjury. The court has responded on a number of occasions in relation to the wife’s allegations regarding the Oxus shares and again reiterates, as is plain from the final judgment of the court, that that asset was dealt with on the basis that those shares did not constitute matrimonial property.”

The 8 May 2025 judgment claims, in those words, to reiterate a determination set out in the final judgment of 18 April 2024. The final judgment of 18 April 2024 ([2024] EWFC 79) contains no such determination. Paragraph 5 of EWFC 79 dismisses the Applicant’s D11 in one sentence (“not proper to take into account”) without reasons. Paragraph 76 contains a bracketed clause stating that the wife “does not appear to dispute” that Oxus is non-matrimonial — a claim contradicted by the D11 the wife had filed seven weeks earlier. There is no reasoned finding in EWFC 79 that Oxus is non-matrimonial property. The 8 May 2025 judgment reiterates a determination that was not made. The published judgment is available at the National Archives: caselaw.nationalarchives.gov.uk/ewfc/hcj/2024/79 — paragraphs 5 and 76 are the material paragraphs.

The 8 May 2025 transcript was produced at public expense and provided to the Applicant by the clerk of the trial judge by email of 18 June 2025. It is a public document of the court. It is quoted at length above. When the transcripts of 22 and 26 February 2024 are produced, they will demonstrate the precise terms in which the Applicant gave evidence on Oxus and whether the question of Oxus value was put to her in cross-examination. The Applicant’s recollection, supported by the contemporaneous attendance notes, is that the question was not put. The transcripts will settle that question beyond any margin of dispute.

The Judicial Review

On 5 December 2025 the Applicant filed for judicial review against the Secretary of State for Justice and HMCTS (AC-2025-LON-004293). The claim pleaded five grounds. Oxus was one of them: that no judicial act had been identified determining whether the sworn statement of \$0 was true or false.

The other four grounds raised parallel undetermined matters — including custody and evidential governance of digital devices, post-trial participation measures under FPR Part 3A, and associated procedural determinations on which no specific judicial act could be identified.

The claim asked the High Court, in its supervisory jurisdiction, to identify any such determination on each ground. The Applicant invited a binary response: either a specific judicial act (judge, date, order and reasons) determining the substance of the matter pleaded, or confirmation that no such act existed.

Permission was refused on the papers by Collins Rice J on 11 March 2026, totally without merit. The order did not engage the five grounds separately. It characterised the entire claim as concerning “criminal complaints” against the husband. No specific judicial act was identified determining the Oxus question, or any of the other four. Permission was renewed and refused again by Goose J on 5 and 7 May 2026.

A judicial review is the supervisory route by which the High Court is asked to compel determination of a question that other courts have not determined. The route was engaged. Permission was refused. No determination was identified. The route closed.

The closed loop

On 30 March 2026, in the EX107 refusal of the perjury-day transcripts, MacDonald J stated that the criminal referral was a matter for “the police, the CPS or the NCA” to apply themselves. The Applicant referred the perjury allegation to the Metropolitan Police. On 8 May 2026 at 09:49, PC David Caldwell of the Metropolitan Police Directorate of Professional Standards wrote, in answer to a complaint that the perjury allegation had not been recorded:

“Such an allegation should be raised directly with the court. The court is responsible for considering whether an offence of perjury may have been committed and for assessing any available evidence. If the court determines that there is sufficient basis to suggest that perjury has occurred, the matter can then be formally referred for criminal investigation. In light of this, I would advise that you raise your concerns with the court in the first instance, as they are best placed to review the circumstances and ensure the preservation of any relevant evidence.”

The court has stated, in writing, that the matter is for the police. The police have stated, in writing, that the matter is for the court. Each named institution has placed the function on the other. The question remains

undetermined for the same reason it has remained undetermined for two years: each institution with the function to determine it declines to do so on the express basis that the function lies elsewhere.

The legal position is unambiguous. Section 9 of the Perjury Act 1911, which once empowered judges to order perjury prosecutions, was repealed by section 28 of the Prosecution of Offences Act 1985 — over forty years ago. No prior judicial finding of perjury is, or has been since 1985, a precondition to a police investigation. The current Crown Prosecution Service guidance, Judicial Comments (cps.gov.uk/prosecution-guidance/judicial-comments), states:

“The final decision as to whether a Prosecution will be brought is that of the CPS. Section 9 Perjury Act 1911, which empowered judges to order perjury prosecutions, was repealed by Section 28 Prosecution of Offences Act 1985... Where a judge or Magistrate believes that some evidence adduced at trial is perjured, he or she can recommend that there should be a police investigation. The absence of such recommendation does not mean that there is no justification for an investigation... Whether or not any suspected offence requires investigation is a matter for the police to assess on the facts of each case.”

PC Caldwell’s response of 8 May 2026 inverts the statutory framework. It places on the court a function — the determination of perjury as a precondition to investigation — that statute removed from the court in 1985 and that CPS guidance expressly disclaims. It simultaneously declines the function — assessing on the facts of the case whether investigation is required — that the same CPS guidance places on the police. The result is that an allegation of perjury supported by signed SEC filings, a contemporaneously sworn Form ES2 contradicting those filings, and the Respondent’s own attendance at the Nasdaq listing eleven days before he swore \$0, is treated by the Metropolitan Police as a matter that cannot be investigated until the court first determines that the allegation is sound — a position that has not been the law since 1985 and is not the published position of the CPS.

Day 5 is on the public record because, on the documents now on the public record, the institutions with the function to determine the question — the trial court, the appellate court, the supervisory court, and the police — have each declined to do so, each on a basis that does not engage the question. The institutional record is itself the evidence.

WHAT REMAINS

What rests on the figure

The financial settlement made in BV20D01752 was constructed on the basis of an asset schedule from which the \$565,000 Oxus shareholding was excluded. The orders that followed have produced approximately £1,055,654.50 in fixed costs awarded against the Applicant, together with an indemnity costs order to be assessed. The detail of that cascade is set out in Day 4 of this series and is not repeated here. Every penny of it rests on a sworn figure that no court has tested.

The institutional record

Between February 2024 and May 2026, the Applicant has made 233 distinct formal submissions to courts, government, parliament, regulators, and law enforcement raising the matters set out above. 47% have been met with institutional silence. 20% have been refused on documented mischaracterisations. 6% have been determined on the substance of the matter raised.

The Oxus question specifically was placed before the House of Commons Justice Committee in formal written evidence dated 7 April 2026, supported by the analytical material. No substantive response has been received. The Oxus question was placed before the Attorney General by formal referral dated 21 May 2025. No substantive response has been received. The Oxus question is on record with the United States Securities and Exchange Commission as whistleblower submission TCR 17284-760-060-567 (9 October 2024, under penalty of perjury). The Internal Revenue Service Criminal Investigation Division has confirmed an open investigation. The underlying documentary audit trail — Exhibit NZ1, the Applicant's chronologically ordered annotated index of every Oxus SEC filing from April 2021 through 2024, originally prepared for the contempt application of 18 October 2024 — is published in the public archive and held within the criminal referral file.

As to transcripts, the institutional record shows selective production. The 8 May 2025 judgment was produced at public expense by the office of the trial judge in June 2025. The EX107 application for the transcripts of the four trial days on which the \$0 figure was sworn and repeated (19, 22, 26 and 28 February 2024) was refused, twice, on 27 March 2026 and 30 March 2026. The transcripts that would settle the perjury question beyond any margin of dispute are precisely the transcripts the institutional route has refused to produce.

Why you are copied

Each institutional recipient copied on this statement holds a constitutional, statutory, or oversight function that engages the matters above. You are not asked to take a position on the litigation. You are not asked to re-open or revisit any decision.

You are placed on actual notice of one documentary fact: that on 16 January 2024 the Respondent in BV20D01752 signed a public SEC filing stating his Oxus Founder Shares had a market value of approximately \$565,000; that on 7 February 2024 the Business Combination triggering recognition of those shares closed; that on 8 February 2024 the new company began trading on Nasdaq and the Respondent attended the listing; that on 19 February 2024 he swore those same shares were worth \$0; that he repeated the \$0 figure on 22, 26 and 28 February 2024; that no court has determined whether the sworn statement was true or false; and that approximately £1,055,654.50 in costs has been imposed on the Applicant on the basis of a settlement constructed from an asset schedule from which the \$565,000 was excluded.

The fact is verifiable, in sixty seconds, by any reader against the SEC EDGAR filings database under CIK 1852973.

Where an institution with the function and obligation to consider this fact fails to do so on the documentary record now placed before it, that failure becomes itself part of the institutional record.

WHAT I AM SEEKING

What I am seeking from institutional recipients

Three things.

First. Production, at public expense, of the transcripts of the four trial days on which the \$0 figure was sworn and repeated (19, 22, 26 and 28 February 2024). The EX107 application for those transcripts was refused on 27 March 2026 and again on 30 March 2026. Without them the documentary contradiction rests on the SEC filings, the attendance notes and the sealed Form ES2 — sufficient already. With them the contradiction can be verified against the sworn record itself, including the question whether the Oxus valuation was put to the Applicant in cross-examination.

Second. A determination of the binary question: was the sworn statement on 19 February 2024, and the sworn oral evidence of 22 February 2024, that the Respondent's 50,000 Oxus Founder Shares were worth \$0, true or false? The question has been formally placed before five judicial bodies. Six different reasons have been given for not answering it. None of those reasons engages the question. The question itself has never been answered.

Third. Withdrawal of the judgments of 18 April 2024 ([2024] EWFC 79), 24 May 2024 ([2024] EWFC 114) and 8 May 2025 from the National Archives and from BAILII pending the determination of the binary question. Those judgments adopt or rely upon an asset schedule that excludes the Oxus shareholding on the basis of a sworn figure that no court has tested. They should not remain on the public record as the authoritative version of facts that have not been determined.

Formal request to the Commissioner of the Metropolitan Police Service

A formal request, addressed specifically to the Commissioner of the Metropolitan Police Service, is made by the Applicant in the accompanying document of even date entitled “Formal Request — Metropolitan Police Service — Recording and Assessment of Perjury Allegation — BV20D01752”.

That request asks the Metropolitan Police Service to (i) record the perjury allegation as a notifiable crime in accordance with the Home Office Counting Rules for Recorded Crime, (ii) assess the matter on the facts in accordance with the published guidance of the Crown Prosecution Service (Judicial Comments), and (iii) provide a written reasoned response within 14 days. The request, the legal anchors on which it is made, and the specific actions sought are set out in full in that accompanying document, which is sent under separate cover by parallel email of the same date addressed to the Commissioner directly.

This section of the public-record statement is placed here to give institutional notice that the formal request has been made and that the documentary and legal basis for it is set out in this statement. The action sought is the action of the Metropolitan Police Service alone.

Closing

This statement is not a pleading, an application, or an invitation to further correspondence. It is a public record of a documentary contradiction. On 16 January 2024 the Respondent signed an SEC filing stating his Oxus shares were worth approximately \$565,000. On 19 February 2024 he swore they were worth \$0. The Business Combination closed between those two dates. The Nasdaq listing took place between those two dates. The Respondent attended that listing in person.

Six judicial bodies have responded. None has determined whether the sworn statement was true or false. The supervisory court has been asked and has declined. The police have been asked and have referred the matter back to

the court. The question is binary. Either it was true, or it was false. There is no third category.

Silence is not a resolution. Determination is.

Until the question is determined, the contradiction remains on the public record.

Nadia Zahmoul

Litigant in Person

nadia@rosekross.com | Address withheld throughout proceedings

19 May 2026

Veritas Numquam Perit

Accompanying material

Attached to this email

- Day 5 — The Perjury on the Face of the Sworn Record (19 May 2026). This statement.
- Oxus Acquisition Corp — 34-Day Sequence. Standalone documentary timeline: 7 June 2022 transfer of 50,000 Founder Shares to the Respondent by Oxus Capital Pte. Ltd; 11 January 2024 signature of the Registration Statement by the Respondent; 16 January 2024 Definitive Proxy Statement and Prospectus (\$565,000 stated); Business Combination consummation 7 February 2024; Nasdaq listing 8 February 2024; sworn Form ES2 of 19 February 2024 (\$0); oral evidence 22 February 2024; counsel repetitions 19, 26 and 28 February 2024. Source references throughout to SEC EDGAR (CIK 1852973) and the contemporaneous attendance notes.
- SEC Filings Excerpts (CIK 1852973), 16 pages. Curated extract of the Definitive Proxy Statement and Prospectus of 16 January 2024 (Registration No. 333-273967) showing pages 30 (beneficial ownership at approximately \$565,000), 43 (Lock-Up Agreements), 245-246 (directors and officers, including Kenes Rakishev as Non-Executive Chairman, and Karim Zahmoul's full CV), 248-250 (Audit Committee, Nominating Committee, Compensation Committee — Karim Zahmoul as a member of each), 287 (beneficial ownership table — Karim Zahmoul 50,000 Founder Shares; Oxus Capital Pte. Ltd controlled by Kenes Rakishev), and 340 (Founder Share transfer of 7 June 2022 and performance condition); followed by the SIGNATURES pages of two successive amendments to the Form S-4 Registration Statement (Amendment No. 5 of 11 January 2024 and Amendment No. 4 of 5 January 2024) recording the Respondent's signature as Director; and the SEC Form 8-K of 5 February 2024 reporting the Oxus Extraordinary General Meeting of 2 February 2024 at which the shareholders approved the Business Combination.
- Email of 6 March 2024 at 05:23 to the trial judge (PDF rendition). Sent by the Applicant in person to Anita Knight, clerk to Mr Justice MacDonald, with both counsel on cc. Sets out the perjury allegation in plain terms and lists five attachments transmitted with the original email: the Material Event summary; SEC Filings Excerpts; the full SEC Proxy Statement of 16 January 2024; the Oxus Timeline; and the Pre-Trial Review Position Statement of Brent Molyneux KC of 13 July 2022.
- Approved transcript of the 8 May 2025 judgment in BV20D01752, produced by the office of the trial judge at public expense and provided to the Applicant by the clerk of Mr Justice MacDonald by email

of 18 June 2025. Paragraphs 14 (the wife's pleaded ground of perjury on Oxus) and 48 (the judge's response — "again reiterates, as is plain from the final judgment") are quoted in full in this statement. Crown copyright; reproduction in the public archive and for public-record purposes is consistent with the licensing notice on the document.

- D-11 Application Notice — Oxus False Representations (7 March 2024). The formal pleaded perjury application filed by the Applicant in person eight days after the trial concluded, six weeks before judgment, signed under statement of truth. The substantive statement and SEC documentary annexures are at pages 8–28 of the document. This application is the document the 6 March 2024 email to the trial judge referenced and transmitted.

Sent under separate cover by parallel email of same date

- Formal Request — Metropolitan Police Service — Recording and Assessment of Perjury Allegation — BV20D01752. Addressed to the Commissioner of the Metropolitan Police Service with all 46 institutional recipients in BCC. The accompanying document referenced in the preceding section.

Cited by published URL

- [2024] EWFC 79 — Final judgment of 18 April 2024 — National Archives: caselaw.nationalarchives.gov.uk/ewfc/hcj/2024/79 — paragraphs 5 and 76 material.
- [2024] EWFC 114 — Costs judgment of 24 May 2024 — National Archives.
- CPS Judicial Comments guidance — cps.gov.uk/prosecution-guidance/judicial-comments
- Home Office Counting Rules for Recorded Crime — gov.uk/government/publications/counting-rules-for-recorded-crime

Available on the public archive

<https://github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive>

- Day 1 — Public Record (20 April 2026).
- Day 2 — The Suppressed Clinical Evidence (1 May 2026).
- Day 3 — Orders Made Without Participation of a Disabled Litigant (4 May 2026).

- Day 4 — The Suppressed Trial Record (11 May 2026).
- Email of 6 March 2024 to the trial judge and its five attachments, including the Pre-Trial Review Position Statement of Brent Molyneux KC of 13 July 2022. New addition to the archive accompanying Day 5.
- Exhibit NZ1 — Oxus Acquisition Corp SEC Filings Index (153 pages). The Applicant's annotated chronological index of every Oxus SEC filing from April 2021 through 2024. New addition to the archive accompanying Day 5.
- Forensic Logic Models for [2024] EWFC 79, [2024] EWFC 114, and the judgment of 8 May 2025.
- Oxus Perjury Annex (16 March 2026).

Held within the criminal referral file (CCR-6501-26-0100-000)

Filed at the Metropolitan Police Specialist Crime Command, with the CPS Special Crime Division and the National Crime Agency Economic Crime Command on copy. Operational engagement recorded 28 April 2026.

- Contempt application of 18 October 2024 with Exhibit NZ1 (SEC filings, Nasdaq photograph, sworn ES2, correspondence).
- SEC whistleblower submission TCR 17284-760-060-567 (9 October 2024).
- Attorney General referral, 21 May 2025.
- IRS:CI New York open investigation — contact: Special Agent Robert McGarry.

The Public Record Series — Days 1 to 5

Updated 19 May 2026

Day	Date sent	Title	Brief summary
Day 1	20 April 2026	Public Record — Day 1	Opening statement. The architecture of suppression in BV20D01752: in-trial references to autism and PTSD in the oral record against zero references in the 111-paragraph judgment of 18 April 2024. Identified the cost cascade of approximately £1,055,654.50.
Day 2	1 May 2026	The Suppressed Clinical Evidence	The suppression of the 8 May 2025 judgment. Dr Leigh Poyser's NHS letter of 26 March 2025 was misread by the court as confirming fitness to attend. The judgment proceeded in the Applicant's documented absence under NHS care.
Day 3	4 May 2026	Orders Made Without Participation of a Disabled Litigant	The four accountability tracks. Documented the institutional pattern across 233 distinct formal submissions: 47% institutional silence; 20% refused on mischaracterisation; 6% determined on substance.
Day 4	11 May 2026	The Suppressed Trial Record	The forensic catalogue. A1 Catalogue of 25 in-trial references to autism and PTSD attached. Three demands: production of transcripts at public expense; independent specialist review; withdrawal of judgments from National Archives and BAILII pending review.
Day 5	19 May 2026	The Perjury on the Face of the Sworn Record	Sworn \$0 on 19 February 2024. Signed at \$565,000 thirty-four days earlier. The four elements of the Perjury Act 1911 section 1 applied to the documentary record. The misrepresentation pattern was on the record from July 2022 and before the trial judge before judgment, via the Applicant's email of 6 March 2024 transmitting the Pre-Trial Review Position Statement of Brent Molyneux KC. Why the matrimonial-character ground is legally irrelevant to perjury. Six judicial bodies, the JR closed, the

Day	Date sent	Title	Brief summary
			police/court loop closed. Material non-disclosure as an independent criminal head under the Fraud Act 2006. Three asks to institutional recipients. A formal request to the Commissioner of the Metropolitan Police Service made under separate cover.

Each instalment has been sent to the same 46 institutional recipients (BCC). The series will continue with Day 6 and subsequent instalments as further forensic material is brought to the public record.

Public archive: <https://github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive>